

THE UNIVERSAL HOUSE OF JUSTICE

1998-10-01

1 further to our email of 29 September 1998 concerning the bahá'ís in
2 asked us to provide the following background information to assist you
3 in explaining to your government contacts and the media the sequence of events and
their implications.

As you know, mr. ruhollah rohani was executed in mashhad under

4 mysterious circumstances on 21 j uly 1998. The execution was carried out
5 in secrecy on the very day after his wife had been invited to visit him in

prison. No official announcement of his death was made, no document

6 affirming the death sentence was produced, no document certifying the cause of his
death was issued. it is known that he had faced trial in branch

8 of the revolutionary court in mashhad during the month of bahman

9 (january / f ebruary) of this year, as had three other bahá'ís: messrs. Sirus

zabihi-m oghaddam, hedayat-kashefi Najafabadi, and Ataollah hamid

10 Nasirizadeh. All four had been sentenced to death, but the verdict of the court in each
case had to be submitted to the Supreme court in Teheran for

11 ratification. The Supreme court reportedly confirmed the death sentence

12 only in the case of mr. r ohani, and, for technical reasons, returned the

13 cases of the other three to mashhad, this time to branch 3 of the revolu-

14 tionary court, for retrial.

15 whereas in the previous trial the prisoners had no lawyer to defend them,

16 a lapse apparently noted by the Supreme court, at the retrial a lawyer not

17 approved by the defendants was assigned to them. The accused had vehe-

18 mently objected to some of the statements of their defense counsel which

19 appeared to prejudice their case. The prisoners were then told that the ver-dict of the
court would be decided later. A few days ago, it was communi-cated orally to the prisoners
that the death sentence has been confirmed in

20 the cases of messrs. moghaddam and Najafabadi, and that mr. Nasirizadeh

21 has been sentenced to ten years' imprisonment.

The accused have been given a chance to appeal to the court that sen-

22 tenced them. Therefore, the appeal will take place in the same branch 3 286.1

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287 1996–2000 • T h e f o u r Y e a r P l a n

288 69of the revolutionary court of mashhad. The difference this time is that

289 they will be permitted to engage their own lawyer. it is very difficult, of

290 course, to find a lawyer who will take on this type of case, because bahá'í

291 lawyers are not permitted to practice in iran; and in the rare instances in the

past when muslim lawyers have undertaken to defend bahá'ís, they were

292 subjected to harassment and abuse.

The nature of the defense that a lawyer can provide in such an appeal

293 is also severely circumscribed. The lawyer is able to meet the defendants

294 in prison and may be permitted to see the court file from which he may make notes,
but he may not photocopy any of the documents it contains.

295 in essence his defense amounts to a written statement prepared by him for

296 inclusion with the submission to be made by the revolutionary court to

297 the Supreme court in Teheran. The Supreme court will then study the file

298 and, if it is satisfied that the proper procedures were followed, will refer the

299 case to one of its branches. The judge or judges of this branch, without meeting with
lawyers or anyone else, will then review the file and issue their judgment, either confirming
or annulling the verdict.

300 The fact remains that the bahá'ís have not had an advocate of their own

301 to argue their case in open court and that, even if they were to find a lawyer to handle
their appeal, no adequate defense is possible.

Department of tHe secretariat

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Arrest of Faculty Members of the Bahá'í Institute of

Higher Education and Raids on Bahá'í Homes

[signed: The Universal House of Justice]